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CASE #	CASE NAME	HEARING NAME
CVRI2304863	CABANAS ALMAZAN vs AMERICAN HONDA MOTOR CO., INC.,	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The Court GRANTS Plaintiff's motion for attorney's fees and award attorney's fees in the reduced but reasonable amount of \$176,635.50 (\$274,917.50 - [\$55,667 + \$42,615]).

Factual / Procedural Context

This is a lemon law case. On September 14, 2023, Plaintiff Patricia Cabanas Almazan ("Plaintiff") filed a Complaint against Defendant American Honda Motor Co., Inc. ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Consumer Warranty Act (the "Song Beverly Act"), and (2) fraudulent inducement/concealment. On November 29, 2023, Plaintiff filed the operative First Amended Complaint ("FAC") asserting only a cause of action for breach of express warranty in violation of the Song Beverly Act. In the FAC, Plaintiff alleges that on October 6, 2019, she purchased a new 2019 Honda Odyssey (the "Vehicle"), on which Defendant provided an express written warranty. (FAC at ¶¶ 7-8, 15-16.) Defects in the Vehicle that substantially impaired its use, value, and safety manifested themselves during the warranty period. (FAC at ¶ 17.) Plaintiff presented the Vehicle to Defendant's authorized facilities for repairs, but Defendant was unable to conform the vehicle to the warranty after a reasonable number of repair attempts. (FAC at ¶¶ 18-19.)

The case went to trial on January 20, 2026, and on February 9, 2026, the jury returned a verdict in favor of Plaintiff awarding her damages in the amount of \$239,915.74. Judgment on the jury verdict was entered on April 24, 2026, and Plaintiff filed a Notice of Entry of Judgment on May 12, 2026.

Plaintiff seeks attorney's fees totaling \$311,093.75, which includes \$248,875 in incurred attorney's fees, and a 1.25 multiplier enhancement (\$62,218.75). She argues that, as the prevailing party, she is entitled to recover all of the fees and costs reasonably incurred in connection with this lawsuit, and the hourly rates and number of hours billed for work performed are reasonable. She also argues that a multiplier enhancement is appropriate because counsel obtained an excellent outcome for Plaintiff, the risks posed by the litigation were substantial, the issues were complex, and counsel demonstrated skill in litigating the case.

Analysis

I. Standard

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Ibid.*) There is no dispute that Plaintiffs are the prevailing party in this case.

At issue in this motion is the reasonableness of Plaintiffs’ request. The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Under the Song Beverly Act, “[a] trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.)

The prevailing buyer in a Song Beverly Act action has the initial burden of to demonstrate the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

In the present case, Plaintiff's counsel's billing records indicate a lodestar figure of \$274,917.50, based on 558.5 hours billed. In her motion, Plaintiff states that she is only seeking \$248,875 of this lodestar figure, due to a discount of 50% of the time spent at trial by Ronald Whitaker. Nevertheless, because the Court's analysis includes a review of the full amount of hours billed by RSW, the full lodestar amount is a starting point.

In opposing Plaintiff's request, Defendant first objects that the hourly rates billed by Plaintiff's counsel are excessive and unreasonable. The hourly rates for Plaintiff's counsel are as follows: Scot Wilson (SW), \$675/hour; Chris Swanson (CS), \$575/hour; Ronald Whitaker (RSW), \$550/hour; Deepak Devabose (DD), \$550/hour; Timothy Lupinek (TL), \$450, 500, 525/hour; Caitlin Rice (CWR), \$375, 425/hour; Mitchell Rosenweig (MER), \$375/hour; Elvira Kamosko (EK), \$350, 375/hour; and paralegal Diana Folia (DF), \$250/hour. It is the job of the Court to determine whether counsel's rates are reasonable, and the hourly rates set forth above do not appear to be reasonable for Riverside County, especially for a simple lemon law case. (See, *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Plaintiff made no showing that he could not obtain local counsel, and therefore, is entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 [plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel].) Accordingly, the billing rates, and thus the amount billed by each attorney, shall be reduced as follows:

Attorney	Billed Rate	Reduced Rate	Hours Billed	Reduction Based on Proper Rate
SW	\$675	\$525	227.4	\$34,110
CS	\$575	\$475	9.6	\$960
RSW	\$550	\$450	94.7	\$9,470
DD	\$550	\$450	3.1	\$310
TL	\$450/500/525	\$400	1.7/7.4/0.2	\$850 (\$85+\$740+\$25)
CWR	\$375/\$425	\$350	17.9/1.2	\$537 (\$447+\$90)
MER	\$375	\$350	9.0	\$225
EK	\$350/375	\$350	1.2/2.0	\$50
DF	\$250	\$200	183.1	\$9,155
			Total	\$55,667

As set forth above, applying the new rates to the billed hours results in a reduction of **\$55,667** from the lodestar identified by Plaintiff. This results in a reduced fee award based on the full lodestar of **\$219,250.50** (\$274,917.50-\$55,667).

While Defendant makes several vague arguments about Plaintiff's billing entries (excessive number of timekeepers, block billing, charging for internal communications),

its main objection is related to Plaintiff's use of two attorneys and a paralegal for trial, resulting in 389.7 hours billed for a 13-day trial (156.1 for SW, 138.9 for DF, and 94.7 for RSW), for a total of \$192,177.50. This is a valid objection. Plaintiff states in her motion that she is only seeking half of the amount billed by RSW (\$26,042.50 of \$52,085 billed) because SW and DF "were the primary persons at trial," attending every day, while RSW attended most of the trial and assisted as needed. (Motion, p. 9:7-1; Reply, pp.2:7-11, 4:13-17.) However, from the papers and invoices provided by Plaintiff, it appears RSW was simply "attending the trial" for the most part, and Plaintiff fails to show how a third member of her legal team, billing out at \$550 per hour, was reasonable or necessary. As Plaintiff fails to establish the time and fees incurred by RSW were reasonable or necessary, the entire amount billed by him should be deducted from the lodestar. This results in a reduced fee award of **\$176,635.50** (\$219,250.50-\$42,615).

Further, the Court declines to apply a multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) In the present case, there is no reason for an enhancement. This was an uncomplicated case and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

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CASE #	CASE NAME	HEARING NAME
CVRI2406169	JUAREZ vs FLORENCE AVENUE LLC	MOTION TO STRIKE PLAINTIFFS SUPPLEMENTAL EXPERT DESIGNATION

Tentative Ruling:

The Court GRANTS Defendant's Motion to Strike.

Facts/Procedural Summary

This case involves a lease between Defendant Florence Avenue, LLC and Plaintiffs Marco Garcia Juarez and Hugo Armando Rodriguez for a commercial property, and disputes between the parties relating to the terms of the lease. (First Amended Complaint ¶¶6.) On October 1, 2019, the parties entered into a Commercial Lease Agreement for property located at 155-156 E. La Cadena Drive, 170-190 E. La Cadena Drive, and 155 & 175 Iowa Avenue, Riverside, California. Plaintiffs demolished